

HOUSE No. 2255

The Commonwealth of Massachusetts

PRESENTED BY:

Mike Connolly

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act facilitating approval of inclusionary zoning for affordable housing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 2255

By Representative Connolly of Cambridge, a petition (accompanied by bill, House, No. 2255) of Mike Connolly relative to local approval of inclusionary zoning. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2039 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act facilitating approval of inclusionary zoning for affordable housing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 5 of Chapter 40A of the General Laws is amended by inserting in paragraph 5 the
2 following after “in accordance with section 3 of chapter 40R.”:-

3 (5) an inclusionary zoning ordinance or bylaw. As used in this paragraph the term
4 “inclusionary zoning” shall refer to zoning ordinances or by-laws enacted principally to ensure
5 some provision of affordable housing in any residential subdivision or multi-unit residential
6 project of a size to be determined by the municipality; provided, that a certain percentage of such
7 subdivision or project’s dwelling units or net floor area, as determined by the municipality, shall
8 be reserved for the construction of dwelling units permanently affordable for occupancy to
9 persons whose household income does not exceed a municipally determined per cent of such
10 municipality’s area median income as such income is determined by the federal department of

11 Housing and Urban Development; and provided further, that the Executive Office of Housing
12 and Livable Communities may issue guidelines or promulgate regulations consistent with this
13 paragraph, including, but not limited to, provisions to ensure that such zoning ordinance or by-
14 law shall not unduly constrain the production of housing.